

The Cambridge Companion to International Law

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The relationship of ideas and practices

Of the different types of law taught at universities or practised in governments, commercial companies, or law firms, international law has always been the most open to moral or philosophical reflection. To engage in international law has been to involve oneself in contested ideas about legitimate government, justified forms of violence, universal rights and the direction of human progress. Ideas about the politically just and unjust are condensed in technical international law rules and institutions, giving them sharpness and actuality that has fed back as experience to the worlds of politics and thought. For example, occupation of territory, the movement of military forces or the rights of aliens are seldom discussed in fully abstract terms – without thinking of *this* occupation, *that* war, *those* people. Abstract legal debate and political engagement are almost always two sides of the same coin. Which is why themes such as 'sovereignty', 'just war' and the 'right to trade and extract resources' may be equally at home in philosophy departments, international courts, foreign ministries and political rallies. As a vocabulary and a practice, international law is deeply embedded in the creation of a global, economically and technologically driven culture. Leading ideas such as the 'universal' or the 'humanitarian' are used both to legitimise current developments and to challenge them. There are few international controversies where both sides would not regularly invoke international law in their favour.

International law revels in conflict. Legal advisors use it to argue cases before tribunals such as the International Court of Justice in The Hague or the European Court of Human Rights (ECtHR) in Strasbourg. Diplomats strategise about it in bilateral relations and at meetings of international

institutions. Politicians invoke it to defend their policies or to attack their adversaries in public speeches and declarations, newspaper articles, pamphlets and manifestos. Even academics find it useful as an instrument to defend or challenge particular forms of international behaviour and to engage in controversies about institutional reforms. But it also carries large ideas about peace, social justice, human freedom and rational management. Most significant political thinkers have, since the seventeenth century, felt compelled to say something about how their abstract reflections might be reflected as international legal institutions. There has always been some disciplinary rivalry about the 'ownership' of themes such as world peace, good government, free trade or sovereign statehood. Are they best dealt with by theologians, as claimed by sixteenth-century Catholic thinkers in Spain, or should they instead be reserved for statesmen and their secular advisors as suggested by their seventeenth-century Protestant followers? The relationship between 'effective action' preferred by foreign policy 'realists' and the 'binding rules' invoked by jurists continues to arouse intellectual debate. Should proposals for 'perpetual peace', made by liberal philosophers such as Immanuel Kant in the eighteenth or Jürgen Habermas in the twenty-first century, be taken as blueprints for diplomatic action (Habermas 2004)? How should writings on the ethics and politics of human rights be reflected in the practices of UN human rights organs? What is the relationship between international law and ideas about economic development and social justice? And what about the 'realist', 'institutionalist', 'liberal' or other models produced by foreign policy think tanks and international relations departments (Besson and Tasioulas 2010)?

Because there is no world government or a world legislative process, such ideas enter into, and are for their part affected by, international law in a subtle process of learning and exchange. Although they open areas of cooperation, they also serve as themes for conflict. No legal system, least of all international law, is a homogeneous bloc in which abstract ideas turn into concrete action an automatic way. The *indeterminacy* of notions such as 'peace', 'security', 'human rights', 'humanitarian action', 'sustainable development' renders them fertile ground for controversy. International law certainly looks for 'peace'. But what 'peace' means, say, to the Israeli government is completely different from what it means to the Palestinians and their respective supporting groups. Ideas about the use of international resources or environmental protection have since

the 1990s been expressed in principles such as 'equitable utilisation' or 'sustainable development' that are wide enough to cover contrasting environmental and economic interests – that is the secret of their success. But they also defer concrete measures to be decided only later, in some further deliberation conducted by technical and economic experts at international institutions that are often distant from political or legal control. That is the problem of universal rules. In order for them to be acceptable, they must be formulated in such a general way that they fail to give indications of concrete action. What they mean, in practice, must then be improvised along the way, often by precisely those whose operations they aim to control (Koskenniemi 2007). For example, the laws of armed conflict, based on the universally accepted Geneva Conventions of 1949 and the Additional Protocols of 1977, are acceptable to countries because they are permeated by abstract standards such as 'proportionality' and 'reasonableness' that indicate a willingness to compromise between civilian and military interests while leaving operational decisions to be worked out between the (military, legal and humanitarian) experts on the ground (Kennedy 2006). The pathways from large ideas to concrete institutional practices are often complex and hard to follow.

Human rights provide inspiration for a variety of international action – they set standards for foreign policy and governmental behaviour vis-à-vis citizens. In fact, they have been so successful that nearly all policies today push themselves forward in human rights terms. From advancing development to expanding free trade, from intervening in 'failed states' to regulating (or not regulating) the internet, the benefits offered by such projects have been described in terms of the 'rights' of the beneficiaries. Because there is no clear limit to such re-labelling, it often happens that both sides in a conflict invoke their 'human right', say, a right to 'freedom' or a right to 'security'. This is why the practice of rights application often takes place by 'balancing' between conflicting rights, by invoking legitimate exceptions or, as in the case of the European Court of Human Rights, leaving a substantial 'margin of appreciation' with the domestic authorities. Through such (and other) mechanisms, abstract ideas about human rights receive concreteness and applicability in the daily decision-making by international institutions (Koskenniemi 1999). To find out the role of an idea in international law is to look for the embedded preferences of the institution that will have jurisdiction over it.

International law in the history of European ideas: early developments

Like other manifestations of European law, international law finds its ideological origin in Roman ideas about the lawful use of power. The law of nations (*ius gentium*) of classical Rome was eminently practical, created in order to facilitate Rome's commercial relations with its neighbours (Kaser 1993). Simultaneously, Stoic universalism pushed philosophically minded orators such as Cicero to imagine a natural law that would coincide with the requirements of human reason and whose validity would be independent of time and place. The idea of a universal law was consolidated in the early years of the Christian era when the church fathers suggested that God had planted certain immutable principles in all humans, regardless of their faith – a view supported by the sixth-century codification of Roman law that included a definition of *ius gentium* as 'what natural reason has established amongst human beings'.

The most influential medieval view of natural law and the *ius gentium* was written into the *Summa theologiae* by St Thomas Aquinas (1225–1274) who supplemented an immutable, divinely created natural law with a law of nations that contained situation-specific conclusions from the former and dealt with historically contingent types of human relations. Aquinas' *ius gentium* contained not only principles of inter-state behaviour later associated with 'international law', such as sending and receiving envoys, but also general rules of social life concerning contracts, inheritance, family relations and slavery. He accepted that independent political communities were to be led by the prince for the common good and that this included the right to wage just war if only the prince had right authority, his cause was just and he pursued it with right intention (Aquinas 1265–1274 [2002]).

In the twelfth century, the Roman-Christian notion of a universal *ius gentium* entered in tension with another product of the European heritage, namely the idea of the Holy Roman Empire. The French King had been declared by the Pope to be 'emperor' in his realm in the thirteenth century. Soon he, as well as the city-republics in Italy, were waging wars and sending ambassadors to other communities in a way that led jurists such as Baldus of Ubaldis (1327–1406) from a view of mere *de facto* independence alongside the authority of the Emperor to full *de iure* statehood that was derived from the *ius gentium* (see further Haggenmacher 1986, 311–358).

The emancipation of the secular state from the overlordship of the Emperor and the Church raised the question of the nature of its statehood into a significant *topos* of humanist thought in the fifteenth century. If Machiavelli (1469–1527) left little room for law in the conduct of external relations, jurists who had grown up in a renaissance spirit such as the Italian Protestant refugee Alberico Gentili (1552–1608) highlighted the pacifying effects of diplomacy while reconfiguring the principles of the just war so as to include the balance of power and reasonable action to forestall its disturbance. Both viewed law as an instrument for order rather than justice. Their antagonists, sixteenth-century Spanish writers, responded by developing a comprehensive vocabulary of natural law and the law of nations within a divinely instituted rational world. Reacting to problems Spain had encountered in Europe and the New World, Dominican theologians from Salamanca such as Francisco de Vitoria (1485–1546), jurists such as Fernando Vázquez de Menchaca (1512–1569) and Jesuits such as Francisco Suárez (1548–1617) started to speak of the use of human power (*dominium*) in terms of universal principles of state authority, Christian and infidel, secular government and universal rights, slowly departing from a theocentric view of the world (Reibstein 1949). They understood the law of nations as a set of pragmatic conclusions from human nature that justified limited state authority, authorised the evangelisation of the ‘Indies’, and solidified the emergence of a universal system of private property, monetary exchanges and trade. A reworked theory of the just war would help enforce this system. The Spanish theory of the law of nations sought to accommodate Christian ethics of human equality, common property and peace in a world of emerging absolutism, capitalism and war. Gentili’s support for absolutism in England was opposed by Suárez, assigned to defend the Catholic subjects of James I by a theory of the Pope’s indirect intervention. Suárez also advocated a law of nations that would be based on the customs of nations and divided in two parts: principles of civil law that were uniform across the world and laws applying to the conduct of the relations of independent states *inter se* (Gentili 1612 [1933]; Suárez 1613 [1944]).

A law among states

‘The Spanish origins of international law’ (Scott 1928) emerged from an amalgamation of humanist and counter-reformation thought but were

taken by Protestant jurists such as Hugo Grotius (1583–1645), Thomas Hobbes (1588–1679) and Samuel Pufendorf (1632–1694) in three different directions that still mark the alternatives for international legal theory. Each argued in the idiom of natural law but in a different direction. In his mature work of 1625, Grotius depicted international law as the slow unfolding of universal principles of justice that were innate in human beings and identifiable by the use of reason. These would support freedom of commerce and navigation while indicting warfare as essentially irrational. For Hobbes, writing in the aftermath of the English Civil War (1651), any innate natural laws were only a figment of the speaker's imagination. Human beings were wolves to each other and needed a firm central power to keep in check their destructive passions. The only reality of the law of nations lay in those interests that sometimes made states cooperate. Pufendorf's compromise between Grotius (natural love) and Hobbes (pure passion) proved to be immensely successful. Generations of international lawyers would follow him in raising the principles of the social contract at an international level, arguing that even if states were egoistic about their interests, their leaders were (or should be) also rational and would understand that those interests could only be realised in cooperation. Drawing on the experience of the fragmented structures of the Holy Roman Empire (of the German nation), and understanding human 'sociability' as a creation of reason and culture, he combined the writers of the *raison d'état* with a rather cheerful view of universal legality (Tuck 1999; Covell 2009).

While German thinkers elaborated the principles of sociability at enlightenment universities such as Halle or Göttingen, French *philosophes* were debating projects of 'perpetual peace' on the basis of themes set out by the Abbé de St Pierre (1658–1743) in 1713. The principles of European public law (*Droit public de l'Europe*) were for the first time collected alongside European treaty practices in a work by the Abbé de Mably (1709–1785). While sympathetic to St Pierre's proposal and critical of the diplomatic practices of the *ancien régime*, Jean-Jacques Rousseau (1712–1778) resigned himself nevertheless to defend the balance of power as the best instrument for a stable legal order in Europe. A revolutionary draft declaration on the 'rights of nations' was debated in the National Assembly in Paris in 1795. It was never adopted, however, as the French troops in Germany turned from liberators to occupiers, vindicating Rousseau's pessimism (Belissa 1998).

Immanuel Kant (1724–1804) rejected the idea that international law (or indeed any law) could be derived either from human nature or from anything empirical. There is no access to 'nature' that would be independent from its realisations in history. But Kant wrote of the ('pure') laws of universal reason that would be applicable regardless of time and place and that would unfold slowly with the progress of humanity. A 'world state' could not be immediately attained; instead, the principles of lawfulness ought to be written into national constitutions so that, with increasing civilisation, a peaceful world would emerge as a federation of (democratic) republics (Kant 1795 [1970]).

Kant's views clashed with the Great Power diplomacy of the nineteenth century. As domestic law stressed the independence of the nation, international law was often reduced to a series of bilateral treaties whose binding force might be doubted. With the conclusion of the first Red Cross Convention (1864), with increasing international cooperation in the technical and economic fields and with the establishment of chairs of international law at European universities, however, this view began to change. The debate on the 'basis of the binding force of international law' ended with the general acceptance amongst jurists of the view, initially put forward by the Austrian public lawyer Georg Jellinek (1851–1911), that this basis lay in the 'nature of the conditions of the international world itself'. No state could live in isolation; every state needed others. Of course, there was no system of enforcement of international law – but neither did there exist rules on the enforcement of domestic constitutional law. To the old problem about the basis of international law, Jellinek gave a response that resembled the one proposed by Pufendorf: it was binding because and to the extent it was socially necessary (Jellinek 1880).

In the last third of the nineteenth century, international law emerged as a practical craft, no longer deriving its rules from theological, philosophical or moral reflection. To be sure, leading lawyers invariably supported liberal ideas, freedom of trade, humanisation of warfare and domestic legislative reform. But they did not feel that these were in need of an elaborate defence and would anyway, with European civilisation, almost automatically spread all over the world. They saw their nationalism as fully compatible with an emerging international legal order and were instrumental in the convening of The Hague Peace Conferences in 1899 and 1907 (Koskenniemi 2001).

A colonial legacy

The history of international legal ideas is intensely Eurocentric. Until the twentieth century, the non-European world appeared to Europe predominantly as an object of colonisation, evangelisation and civilisation. From the Romans through to the nineteenth-century 'informal imperialism', European lawyers and political thinkers understood international law as being developed in Europe and providing for different rules for inter-European relations and relations between European and other entities, labelled *en masse* as 'uncivilised'. But the colonial legacy was never uniform and while its practical realisation usually involved ruthless disregard for colonised peoples and their interests, the official justifications varied from religious ideas to a secular paternalism, from efforts to eradicate 'unnatural' or heathen practices to more recent policies to direct the 'development' of the Third World or to inject it with 'human rights' and the 'rule of law'. Although long-standing diplomatic and treaty relations existed between European states and such non-European states as China, the Ottoman Empire, Persia, and Siam, amongst others, the only specific ideas that related to those relations had to do either with advantages provided to the Europeans (and the United States) or special procedures for carrying out the work of 'civilisation'. In the eighteenth and nineteenth centuries, international law's relationship with the non-European world was embedded in a philosophy of history that saw Europe lead the way to a universal organisation of humankind in some distant future. Only towards the end of the twentieth century has there emerged something like an effort to think about international law from the perspective of the colonised (Anghie 2005).

Twentieth-century controversies

After the First World War, debates about the nature, force and content of international law commenced anew. At this time, expressions such as 'positivism', 'naturalism', 'realism', 'sociological jurisprudence', 'idealism' and, slowly, 'functionalism' emerged to characterise typical positions. Because these positions were also dependent on each other in complicated ways, none of them was able to attain a hegemonic stance. The urgency of the debate was underlined by the collapse of the old diplomatic system and

the creation in 1919 of the League of Nations as a completely new type of institution for peace-keeping and the friendly settlement of disputes. But the origins of the League Covenant in the peace treaty with Germany together with its operative weaknesses contributed to the continuation of a debate about the force of this new law.

That debate was conducted with most sharpness in Germany, where the powerful 'formalism' of Hans Kelsen (1881–1973) stood against a revival of natural law and the emergence of a sociologically oriented jurisprudence. Was international law binding because that was how we should logically think about it, because it embodied valuable goals of human association or because it was (and only to that extent) in the interests of states themselves? Political 'realists' used generalisations from psychological, sociological or existential facts against the very possibility that an artificial and history-less normative structure could ever become a reality. Some, such as the public law theorist Carl Schmitt (1888–1985), were arguing that the 'universal' principles underlying the League were in truth mere extrapolations from the interests of the Anglo-American elites. By contrast, in Britain, the Cambridge professor Hersch Lauterpacht (1897–1960) read the Covenant of the League as 'higher law' and lectured to his students during the war on the coming world federation (Kelsen 1928; Lauterpacht 1933; Schmitt 1950).

The Second World War did not end in a blueprint for a new international law. There was little discussion about international law 'ideas' – apart from dismissing them as utterly unreal or counter-productive. A pragmatic spirit accompanied the establishment of the United Nations and the outbreak of the Cold War. While Europeans focused on regional integration, political science departments in the United States produced sociologically oriented re-readings of legal and diplomatic materials. The view of law as an instrument for foreign policy was articulated by Myres McDougal (1906–1998) from Yale, perhaps fittingly so as to defend US interests in the Cold War. The German lawyer-refugee Hans Morgenthau (1904–1980) became extraordinarily influential in establishing 'international relations' on such realist premises as the balance of power and an extensive concept of the 'political'; but he also advocated a limited role for the law and speculated about the possibility of a world federation (Morgenthau 1948).

The rise of the Third World to prominence began by a call for a 'clean slate' in international law. After all, international law had provided many of the forms of the defunct colonialism. But Third World jurists soon realised

that traditional ideas about statehood, self-determination and non-interference could be employed in their interest as they had once been employed in the interests of their colonial masters. In the 1970s and 1980s, welfarist themes about a new economic order, including nationalisation of foreign property on equitable conditions, technology transfer and redistributive justice took over international law's agenda of reform. These ideas became very visible in the United Nations and associated intergovernmental organisations until the 1990s when they were offset as the World Bank and the major capital exporting countries turned to neo-liberalism and structural reform.

Throughout the twentieth century, international lawyers have had a complex relationship with the idea of sovereignty. In the 1960s it became fashionable in the West to attack it as an obstacle to the protection of human rights, to securing the conditions of universal free trade, and to taking effective action to combat environmental degradation. In the mid 1990s, the critique of sovereignty turned towards advocating intervention and realising the criminal responsibility of national leaders accused of crimes against humanity. The collapse of real socialism and the predominance of the liberal ideology of the market supported the development of a robust system of free trade under the World Trade Organisation (WTO) in 1995 with a system of legal dispute settlement at its core; it also supported (though never unequivocally) the notion of an 'international community' that would take upon itself the reconstruction of 'failed states' and later, the 'fight against terrorism'.

Amongst the most conspicuous developments in the past decades have been the consolidation of international human rights institutions on a regional and universal scale as well as the emergence of international criminal law, both reflecting the turn to values such as 'good' and 'evil' as informing international action. The close relationship between the activities of human rights organs and international criminal trials with political questions has sometimes – for example with the prosecution by the International Criminal Court of parties in the civil wars in Uganda and the Sudan – raised the question of the appropriate role and jurisdiction of such bodies in on-going conflicts. In the aftermath of the increased activity of the UN Security Council in the 1990s, a debate on the extent of the Council's jurisdiction and its accountability under international law was briefly raised. Today, the front line in action under maintenance of peace and security has been taken by coalitions of 'likeminded' countries in a way that

is not always easy to compress within existing legal institutions – though the attempt to do so is usually made (e.g. Calliess, Nolte and Stoll 2007).

In the twenty-first century, international law has been vigorously invoked by all in the controversies about globalisation. Is international law politically neutral or is it for such ideas as 'democracy', 'freedom' or 'security'? One predominant theme has been international law's 'fragmentation' – the emergence of specialised regimes with their own experts, preferences and agendas in fields such as 'trade law', 'human rights law', 'environmental law', 'international criminal law' and so on. This has often been accompanied by 'deformalisation', the replacement of formal treaty rules by informal and flexible standards ('regulation'), emerging from decentralised regimes of informal governance – a new kind of 'transnational law' that has elements of private and public law and that is often managed by technical experts and applied so as to receive economically optimal results. This has created problems of legitimacy that have been reflected in the anti-globalisation movement but also in the proposal for an international constitution or the creation of 'international administrative law' to provide for the transparency or accountability of this type of 'governance'. In these debates, old ideas about the relations of law and power have often been dressed in novel vocabularies borrowed from political theory or social sciences (Koskeniemi 2007; Klabbers, Peters and Ulfstein 2009).

Ideas and controversy

International legal ideas constantly interact with philosophical and jurisprudential debates, often in the context of on-going political controversy. Rather than showing any clear, linear progress, their history unfolds as a succession of debates in which new vocabularies often give expression to old themes sometimes in more or less self-conscious right- or left-wing versions (see, e.g., Goldsmith and Posner 2005; Marks 2008). The ideas typically come in pairs of opposites, reflecting contrasting ways to think about a problem. With this in mind, it is easy to identify five themes in international law that arise over again and in which contrasting approaches are used to give substance to disputed preferences or academic controversies.

The theme of the *international community* appears alternatively as a desired goal of international action or a negative utopia of hegemonic

oppression. 'International community' is sometimes invoked to express human solidarity, universal rights or the homogeneous character of human experience. As such, it has supported utopian blueprints of 'perpetual peace' or 'world government' to which institutions such as the United Nations or the informal networks of 'globalisation' have given more or less successful expression. In its negative shape this theme has given rise to the critiques of empire or globalisation as a smokescreen for the advancement of the interests of those in powerful positions. Typically, 'humanitarian intervention' has been both celebrated as a manifestation of awareness of the unity of humankind and a sombre instrument for policing the world by those having the resources to do so (Orford 2003).

The theme of the *individual* is raised over and again in international law either in terms of 'belonging' (i.e. as citizenship, nationhood, diplomatic protection and, again, humanitarian intervention), or as desire for autonomy and freedom. The debates about jurisdiction are typically about the way individuals link to particular communities, while much of the law of human rights treats the individual as a counterpoint to community. The former perspective highlights human solidarity and the individual's participation in collective life as desirable; the latter emphasises the individual's need of distance from larger entities, stressing autonomy as an essential part of a fulfilling life. Debates about collective self-determination and individual rights often give expression to such contrasting pursuits, as do those concerning migration, indigenous peoples or desirable structures of the international economy (freedom versus regulation).

Sovereignty mediates between international community and the individual. Its persistence as a leading international law theme is an outcome of our wish to seek a middle-ground between world order (oppressive hegemony) and the individual (anarchistic egoism). In its positive shape, sovereignty comes to international lawyers as self-determination by a historically formed group, giving expression to shared experiences and faiths, and as independence from outsiders. Its dark side connotes exclusion, boundaries, entrapment of human groups under oppressive regimes or perpetuating the ineffective management of problems thought to be essentially 'international' (Kalmu and Skinner 2010).

Peace is an idea endorsed by all – and yet much of international law has always been about the lawful ways in which to engage in war. This is so because *peace*, although desirable in the abstract, may also connote oppression, or a moment when the enemy collects its forces to prepare for battle.

There has been no lack of efforts to appeal to formal peace so as to uphold some politically unacceptable regime – and no dearth of peaceful explanations for the necessity of war. Caught in this dilemma, the International Court of Justice in 1996 saw it necessary to state that it could not say definitely whether the use of nuclear weapons might be allowed in self-defence when the very existence of the state was at stake (*Legality of the Threat or Use of Nuclear Weapons, Advisory Opinion*, ICJ Reports 1996, p. 226, 263).

Finally, *welfare* often appears among international law's leading objectives. But does it mean freedom of trade or more regulation for balanced development? Does it call for international action for the purposes of environmental protection or more efficient use of national resources? And what is the relationship between economic development and political rights? As a positive goal, 'welfare' connotes prosperity, a clean environment and social benefits. Its negative image takes on the appearance of increased regulation, managerialism, absence of citizen initiative and expert rule (Jouannet 2010).

Much of international legal controversy turns around such themes. The protagonists employ the positive and negative images associated with each theme so as to support their desired rules or agendas. There is no closure to such controversies because the more one presses on the positive image associated with a theme, the more one's antagonist is able to point the inevitable emergence of its dark side. With this, it appears that international law is not a blueprint, still less a logical system, but a language within which contrasting interests and values may be presented, a habit in which they may be dressed. To engage in it is not to be part of some world-wide effort to construct a harmonious system of rules but to take part in controversies about how to prioritise matters of international concern, for example, whether to prefer the private right of a foreign investor or the economic needs of the host state, the effectiveness of an occupation regime or the rights of those living under occupation. There are no 'final' answers to such questions. Often the good answers are intensely contextual: a compromise between opposing parties that can work only where it has been attained. International law does not contain a ready-made blueprint for a better world that could only be 'applied' so as to bring about peace and justice. Instead, it contains arguments and positions, precedents and principles that may be employed to express contrasting interests or values in a relatively organised way. To extract international legal ideas from

their uses in actual controversies is the surest way of failing to understand their actual operation.

Structure of international law: between normativity and concreteness

This is not to say, however, that it would be impossible to extract patterns in recurring controversies about international law. There is a structure in the system of opposing pairs of legal concepts that can be depicted in the tension between the demands of international law's *normativity* and its *concreteness*. The normativity of a legal idea – say, a rule or an institution – has to do with its 'oughtness', the way it does not merely describe some aspect of reality but poses requirements for it. This accounts for international law's 'idealistic' aspect, the way its rules and institutions do not simply accept some political facts – occupation of territory, say, or pollution of the marine environment – because they happen to take place. International law seeks autonomy from such facts and, instead, aims give expression to (normative) ideas such as 'peace' or 'clean environment' whereby the present (unacceptable) facts may be changed.

However, international legal ideas cannot simply live as abstractions. They must also have concreteness; they must reflect what actually takes place in the political and economic world. This is important for two reasons. First, if they did not reflect what takes place in reality, we would be at a loss about where they come from. But when we assume that they 'reflect' the wills and interests of important actors, then we do know where they originate, and that origin – we assume – reflects a justifiable basis for applying them. And second, they must also link to verifiable facts because if they did not so do, then they would look like political or philosophical abstractions under which any policy might seem defensible. This is precisely why we look at treaties, customs and decisions of authoritative international institutions. They are the external surface – the 'canvas' – that is provided to lawyers by international facts, the content of which can be professionally verified (Koskenniemi 2005).

Now 'normativity' and 'concreteness' seem both necessary: an idea that lacked normativity would seem merely a sociological description. It would merely tell what people (or states) do, and not what they *should* do. It would be an *apology* for power. An idea that lacked concreteness would appear

like a mere (philosophical) abstraction. We would have no way of explaining where it comes from or what it means in practice. It would seem a mere *utopia*. The critiques of 'apology' and 'utopia' are constantly used to contest the validity or application of particular legal ideas: either they are 'only hypocritical servants of power' or 'abstract expressions of idealist imagination'. To avoid such critiques, legal rules or institutions should be both 'normative' and 'concrete' simultaneously. But that is difficult. The more normative an idea, the less it can be defended by what actually takes place in the world of practice. And the more concrete an idea, the more firmly it is embedded in the sociological substratum of the international world, the more it comes to seem a mere apology for state power. Normativity and concreteness cancel each other out: the more normative an idea, the less concrete it is, and vice versa. But the tension between the two requirements may now be used to explain the dichotomous character of international law, the way its ideas always come in pairs, and the way it helps to structure international controversies, though it does not provide an independent resolution to them.

International law is an aspect of the world of philosophical, historical, political and even religious ideas. It expresses large aspirations for a better world. But is also a professional technique for pursuing and (sometimes) settling disputes. It is part of human desires and human practices, those two relating to each other in complex but relatively predictable ways. The tension in international law between the needs for normativity and concreteness explains at least in part why its ideas always appear in pairs, one side of which represents international law's idealist aspiration, the other its realist awareness. Because neither can be preferred in a general way, international legal practice constantly pushes towards the particular case, or the technical and contextual solution.

This is not to say that international legal ideas would be useless. They have a considerable historical, intellectual and emotional pull. They engage citizens, diplomats and lawyers to reflect on the problems of the world in a relatively structured way. But they do not themselves resolve those problems. They give a voice to demands and interests and facilitate the articulation of controversies – and thus also their resolution – by showing how alternative acts bear upon larger aspirations. They work as critique of power and as instruments of power. As ideas, they are a necessary aspect of thinking about the world but deeply unsatisfactory in trying to find ways of dealing with it.

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